

In **פרשת משפטים**, a parsha filled with numerous מצוות, it says (21:14): **וְכִי יִזְדּוּ אִישׁ עַל רֵעֵהוּ לְהַרְגוֹ בְּעֶרְמָה מֵעַם מִזֵּיד מִזֵּיד וְהָיָה תִּקְוָתוֹ לָמוּת** - If a person is a מזיד and he kills somebody intentionally with trickery; **וְהָיָה תִּקְוָתוֹ לָמוּת** - If he runs, as the famous גמרא says, when יואב was to be punished for killing Avner and Amasa, he ran to the מזבח and held on like a sanctuary city. So if he grabs onto the מזבח, thinking that he's going to be safe because he's holding onto the מזבח, the תורה says, take him away and take care of him.

The אפיריון, from R' Shlomo Ganzfried, brings out a fascinating insight and I thought it would be worthwhile to share it. The אפיריון says **לפי עניות דעתי**, [which is such a wonderful phrase, **לפי עניות דעתי**], in my small and humble opinion, the **פרשת יתרו** and the opening פסוק of **פרשת יתרו** are connected. The closing פסוק of **פרשת יתרו** is (20:23): **וְלֹא תַעֲלֶה בְּמַעֲלֹת עַל מִזְבְּחִי** - You should not ascend the מזבח using steps. Instead, the כהנים used a ramp, the כבש. The very first pasuk in **פרשת יתרו** is **וְלֹא תַעֲלֶה בְּמַעֲלֹת עַל מִזְבְּחִי**.

The **פרשה** poses two key questions:

1. What is the connection between **וְלֹא תַעֲלֶה בְּמַעֲלֹת עַל מִזְבְּחִי** and **וְלֹא תַעֲלֶה בְּמַעֲלֹת עַל מִזְבְּחִי**?
2. Why was there a need for this איסור that the מזבח should have a ramp and not steps?

The פסוק says (28:42): **וְעָרְוָה בְּדֶלֶת מְכַנְסֵי בְּשָׂרָם** - the כהנים wore מכנסים to cover their ערוה. So then why did the תורה have to give you a separate, additional אזהרה, a warning, that you have to walk up a ramp, and be careful not to be ערוה בשר בגדים, the בגדים were made to cover up those private parts of the body which have to be covered, and couldn't be seen anyway?

in the **פרשה** explains that just as **הקדוש ברוך הוא** instructed the כהנים to take small, deliberate steps when ascending the כבש - walking גודל גודל, heel to toe - so too, in דין דינים, must exercise extreme care when rendering משפט. They should not rush to conclusions with פסיקות גסות, assuming familiarity with a הלכה simply because they've encountered similar cases in the past. Instead, every דין requires meticulous scrutiny and thoughtful deliberation. This insight sheds light on the פסוק we began with: **וְכִי יִזְדּוּ אִישׁ עַל רֵעֵהוּ לְהַרְגוֹ בְּעֶרְמָה מֵעַם מִזֵּיד מִזֵּיד וְהָיָה תִּקְוָתוֹ לָמוּת**. Even if all evidence, עדות, and accumulated data, point conclusively to the fact that this person committed murder בזדון and בערמה, the דיינים are warned: אל - Don't rush to דן him to מיתה. Just as ascending the מזבח requires deliberate care, so too must דיינים exercise caution and diligence before passing judgment.

(Now what's fascinating is that where is this אמינא that they would take steps to the point of being מגלה? There's a famous גמרא ברכות, that they used a גורל in the בית המקדש to pick which כהנים did which ערוה. Why? Because before they had a גורל, one time they were rushing up to do תרומת הדשן and one כהן was running after the other one in such a hurry to do this מצוה that he pushed the other כהן, and he knocked him down and he hurt him. So after that they made a גזירה that they should do a גורל. So I thought about it, you can't run in כהונה. One would think that they would have to lift up the hem of their garment, to run up that מזבח as fast as they could. So there was indeed a tremendous concern, that there could be some element of walking up improperly, and being ערוה בשר. So therefore, I think it's a relevant הלכה, I think it is something which could possibly happen, despite the fact that they're supposed to walk up carefully and slowly.)

So what is the lesson for us? We should never rush to judgment. Always be זכות לך. Although we are not דיינים in a בית דין, we make judgments every day - about family members, friends, and even strangers. There's a famous story about a child who saw a man entering his car on שבת. "Daddy, that man is driving on שבת," the child exclaimed. The father calmly responded, "He's probably in Hatzalah, rushing to save a life - סכנת נפשות." Always be זכות לך, and you will be happy you did.

